GOVERNMENT OF ANDHRA PRADESH
ABSTRACT

Revenue Department - Andhra Pradesh Crop Cultivator Rights Act, 2019 (Act No.30 of 2019) - Andhra Pradesh Crop Cultivator Rights Rules, 2019 – Notification – Orders - Issued.

REVENUE (EA&AR) DEPARTMENT

G.O.MS.No. 410 **Dated: 23-09-2019**

Read the following:

Andhra Pradesh Crop Cultivator Rights Act, 2019 (Act No.30 of 2019) published in Extraordinary issue of Andhra Pradesh Gazette No: 30, Part IV-B, Extraordinary, dated 17-08-2019.

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ORDER:

The following notification will be published in an Extra-Ordinary issue of the Andhra Pradesh Gazette, dated:23.09.2019.

NOTIFICATION

In exercise of the powers conferred by sub-section (1) of Section19 of the Andhra Pradesh Crop Cultivator Rights Act, 2019 (Andhra Pradesh Act No. 30 of 2019), the Governor of Andhra Pradesh hereby makes the following rules, namely: -

CHAPTER – I

PRELIMINARY

1. **Short title, extent and commencement:**- (1) These Rules may be called the Andhra Pradesh Crop Cultivator Rights Rules, 2019.

(2) They shall extend to the whole of the State of Andhra Pradesh.

(3) They shall come into force on the date of their publication in the Andhra Pradesh State Gazette.

2. **Definitions:** - In these rules, unless the context otherwise requires;-

(a) "*Act*" means the Andhra Pradesh Crop Cultivator Rights Act, 2019 (Andhra Pradesh Act No. 30 of 2019);

(b) "*Form*" means a form appended to these Rules;

(c) "Village Secretariat" means village level administrative office;

(d) "*Section*" means a section of the Act;

(e) “Banker” means State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government;

(f) “Village Volunteer” means as defined by the Panchayat Raj Department from time to time.

(Conted.,2)

CHAPTER – II

EXECUTION OF AGREEMENT

3. **Crop Cultivator Rights Card (CCRC):-**(1)It is an agreement executed between the Land Owner and the Cultivator for a period of eleven months countersigned by the Village Revenue Officer in the Village Secretariat with the conditions specified under Section 3(3) of the Act in the **Form-I** appended to these rules.

(2) Either the Land Owner or the Cultivator who intended to make an agreement for crop cultivation for the agreed land for a particular crop year may get unfilled preprinted Crop Cultivator Rights Card (CCRC) from the respective Village Secretariat at any time during the crop year.

(3) The Village Revenue Officer or Village Volunteer concerned shall facilitate bringing together the Land Owner and Cultivator for the signature of CCRC.

(4) The filled CCRC with the signatures of the Land Owner and the Cultivator shall be handed over to the Village Secretariat by the concerned Village Revenue Officer or Village Volunteer. The same may also be handed over to Village Secretariat by either Land Owner or the Cultivator.

(5) The Village Revenue Officer in the Village Secretariat concerned shall countersign the CCRC after completion of verification with respect to the village revenue records.

(6) The Village Secretariat shall hand over the signed CCRC to both Land Owner and Cultivator within 3 days from the date of receipt of filled CCRC.

(7) Agreement in the form of CCRC within the family members shall not be allowed.

(8) The agreements in the form of CCRC shall be for maximum period of 11 months.

(9) The land owner may authorize any person in writing on his behalf to sign the agreement with the cultivator.

(10) Land owner can give his consent through Video link to be recorded by the village secretariat as evidence of agreement. In such case signature in CCRC will not be required. The Video footage shall be preserved by the village Secretariat for evidence. Owner can communicate his consent through other means of Electronic Media.

(11) The Owner of land if residing far off can also sign CCRC and send the scanned copy to village secretariat through Electronic media in token of his consent / agreement.

(12) In case of such alternative modes of consent, the authentication should be done by Village Secretariat and shall be accepted by Bankers and other concerned authorities as enough proof of consent of the land owner.

(Conted.,3)

(13) While the CCRC should be available all the year round in the Village Secretariat for land owners and the Cultivators, the Bankers/ Financial Institutions should also follow the loan sanction schedule (timelines) issued by the Government Bankers/ Financial Institutions shall not refuse sanction of Crop Loan beyond prescribed timeline when approached by the Cultivator.

4. **Register of Crop Cultivator Rights Cards:** -(1) On and from the date of commencement of the Act, a register containing the details of all the agreements executed in the form of Crop Cultivator Rights Cards received shall be maintained by the respective functional authority in Village Secretariat in **Form-II** for every crop year.

(2) A copy of the register in Form-II shall be submitted to the concerned Tahsildar's Office.

(1) Copy of the register shall be sent to all the concerned public financial institutions operating within the Mandal and agricultural officer of the Mandal.

5. **Benefits extended to the Cultivator: -**(1)The Cultivator shall be entitled to obtain crop loan on the land under agreement from the State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government.

(2) The Cultivator shall also be entitled to obtain Crop Insurance, Input Subsidy, Crop damages or any other benefits or facilities provided to the farmers by the Government.

(3) SC., ST., BC and Minority Cultivators will also be entitled to "Rythu Bharosa" Scheme in addition to Land Owners as per guidelines of the scheme.

6. **Register of benefits extended: -**All benefits provided to the Cultivators under Rule 5 shall be recorded in a register in **Form-III** to be maintained in the concerned Village Secretariat.

7. **Applicability in Scheduled Areas:** -These Rules shall apply to the Cultivators who belong to local Scheduled Tribes only notified within the Scheduled Areas of the State of Andhra Pradesh.

8. **Appeals:** -(1) Any person aggrieved by the decision of the Village Secretariat either granting or refusing to grant of CCRS may file an appeal to the Tahsildar of the concerned Mandal in **Form-IV (A) or (B) as applicable** and the Tahsildar shall dispose the same by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.
(2) Any person aggrieved by the decision of the Tahsildar may file a further Appeal before the Sub Collector or Revenue Divisional Officer of the concerned Revenue Division in writing within a period of 7 (Seven) days from the date of receipt of the order of the Tahsildar and the same shall be disposed by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.

(3) Any person aggrieved by the decision of the Sub-Collector or RDO, may file a revision before the Joint Collector of the concerned District in writing within a period of 30days from the date of receipt of such order and the same shall be disposed by summary enquiry within 7 (Seven) days by giving opportunity to both the parties.

(Conted.,4)

CHAPTER III

MISCELLENEOUS

9. Removal of Difficulties: -If any difficulty arises as to the interpretation of any provisions of these Rules or in the implementation of such provisions, the Chief Commissioner of Land Administration shall have powers to issue clarifications or directions for the purpose of removal of the difficulties in implementation of the Act and rules made there under.

(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

MANMOHAN SINGH, IAS
SPECIAL CHIEF SECRETARY TO GOVERNMENT

To
The Commissioner of Printing & Stationery (Printing Wing), Vijayawada
(With a request to publish the Notification in the Andhra Pradesh Extraordinary Gazette and supply 1000 copies of the same in English & Telugu expeditiously).
The Special Chief Secretary & Chief Commissioner of Land Administration, A.P., Vijayawada.
All Departments of Secretariat.
All Collectors in the State of Andhra Pradesh.

Copy to:

The OSD to Secretary to Hon'ble C.M.,
The Law Department.
The OSD to Deputy Chief Minister (Revenue).
The P.S. to Spl CS, Revenue (land) Department.
SF/SCs.

//FORWARDED: BY ORDER//

SECTION OFFICER

Form - I

[Under Section 3(2) of the Act No. 30 of 2019 read with Rule 3]

Crop Cultivator Rights Card (CCRC)

**(Loan eligibility to the Cultivator &
Lawful Assurance to the Land Owner)**

Sl.No in the Register:

Period of the CCRC: Maximum of 11 months in a Crop year only

This Agreement is made and executed on this _____ day of _____ at _____(place) under the provisions of the Andhra Pradesh Crop Cultivator Rights Act, 2019 between the following for the scheduled land:

1. Sri/Smt_____S/o,D/o,W/o_____aged about _____, Occupation_____, R/o_____,Aadhar No: _____ (**Hereinafter called the Land Owner)**

And

2. Sri/Smt_____S/o,D/o,W/o_____, aged about _____, Occupation _____, R/o _____, Aadhar No: _____ , belongs to SC/ST/BC/Minority category. **(Hereinafter called the Cultivator)**

SCHEDULE

District: **Mandal:** **Village:**

Sl.No	1B-Khata Number of Land Owner	Sy. No/s	Total Extent of the Land Owner	Extent of Land made agreement for Cultivation	Classification of the land

Signature of the Land Owner
& Mobile No.

Signature of the Cultivator
& Mobile No.

Signature of the VRO

Note: Please strike off words which are not applicable.

NOTE:

1. This CCRC issued under the Act, shall not be used as evidence in support of right over the land under agreement against the Land Owner before any Court or Legal Authority.

2. This CCRC shall not provide any right over the land under agreement except on the crop cultivated by the cultivator. All rights over the land under agreement shall vest with the Land Owner only.

3. Under Section 5 of the Act, the Cultivator shall be entitled to obtain crop loan on the land under agreement from the State or Central Government or Agricultural Co-operative society or Scheduled Bank or any other Financial Institution owned controlled or managed by the State or Central Government and also to obtain Crop Insurance, Input Subsidy, Crop damages, or any other benefits or facilities provided to the farmers by the Government.

4. SC., ST., BC and Minority Cultivators will also be entitled to “Rythu Bharosa” scheme in addition to Land Owners.

5. The Revenue Official shall not transfer or create any right to the Cultivator over the land under agreement by using CCRC.

6. The scheduled land shall not be attached by the Bankers/Financial Institutions for recovery of any dues of the Cultivator. The recovery shall be made from the proceeds of the crop only.

7. The Village Secretariat and the Village Volunteers shall co-ordinate the Land Owner and the Cultivator.

8. This CCRC shall be prepared in duplicate; one copy to the Land Owner and one for the Cultivator.

Form – II

[Under Section 8(b) of the Act read with Rule 4 (1)]

Register of Crop Cultivator Rights Cards

Sl. No.	Date of receipt of CCRCs	Name of the Cultivator and Name of the Father/Husband	Address of the Cultivator	Religion	Category (SC/ST/BC Minority/ Others	Caste	Aadhar Card No. of the Cultivator
1	2	3	4	5	6	7	8

Particular of the land under the agreement for crop cultivation			Whether CCRC issued	If not, reasons for not issue of CCRC	Signature of the person in Village Secretariat	Remarks
Survey No. & Sub-division No.	Extent under agreement	Name and address of land owner				
9	10	11			12	13

Form – III

[Under Section 8 of the Act read with Rule 6]

Register of benefits extended to Crop Cultivator

Sl. No.	CCRC Number	Name of the Cultivator and Name of the Father/Husband	Address of the Cultivator	Religion	Category (SC/ST/BC Minority/ Others	Caste	Aadhar Card No. of the Cultivator
1	2	3	4	5	6	7	8

Particulars of Crop Loan Sanctioned	Particulars of Crop Insurance Sanctioned	Particulars of Input Subsidy Sanctioned	Particulars of Crop damage Sanctioned	Rythu Bahrosa Sanctioned	Particulars of other benefits Sanctioned	Remarks
9	10	11	12	13	14	15

Signature of the Person in Village Secretariat

FORM – IV(A)

[See Section 10 of the Act read with Rule 6 (1)]

(For Cultivator)

Appeal filed before the Tahsilder, _____ Mandal

I_____ S/o W/o. _____ Aged about _____ R/o _____ Village, _____ Mandal of _____District, am the Cultivator of land of an extent of Ac. _____ _____ cents in Sy.No. _____ situated in _____ Village _____ Mandal,of which the Land Owner is Sri _____ S/o W/o _____ . That.I applied for Crop Cultivator Rights Card; but the same was not granted to me/cancelled without valid reason or excuse for such refusal or rejection.

Therefore, I request the Authority to reconsider the said issue and direct the village secretariat to grant Crop Cultivator Rights Card modifying the earlier decision.

I enclose the order of Designated Revenue Officer together with the evidence available.

Signature Name of Appellant and Address

FORM – IV(B)

[See Section 10 of the Act read with Rule 6 (1)]

(For Land Owner)

Appeal filed before the Tahsilder, _____ Mandal

I_____ S/o W/o. _____ Aged about _____ R/o _____ Village, _____ Mandal of _____District, am the Land owner of an extent of Ac. _____ _____ cents in Sy.No. _____ situated in _____ Village _____ Mandal, of which Sri _____ S/o W/o _____ claims to be the Cultivator. That, Crop Cultivator Rights Card; was granted in his favor without my consent.

Therefore, I request the Authority to reconsider the said issue and direct the village secretariat to cancel the Crop Cultivator Rights Card with respect to my land.

I enclose the order of Designated Revenue Officer together with the evidence available.

Signature Name of Appellant and Address
Date: